

ANNEXURE

[See rule 38]

AGREEMENT OF SALE

This Agreement of sale is made and executed on this _____ day of _____ 2020 at Hyderabad by and between

1) Sri **C. MAHENDER REDDY** S/o. Sri C Narasimha Reddy Aged :61 years, Occupation : Business, R/o. H.No. 11-10-133/1, Telephone Colony, Road No. 1, Kothapet, Hyderabad-500035, PAN No. **AGDPR1442C**, Aadhar No. **9502-4214-2608**, Phone No. **9652971199**.

2) Sri **C. AMARENDER REDDY** S/o. Sri C Narasimha Reddy Aged about 50 years, Occupation : Business, R/o. H. No. 4-5-767, Badi Chowdi, Sultan Bazaar, Hyderabad , 500027, PAN No. **AGFPR7202N**, Aadhar No. **2339- 6352-8405**.

Represented by their DAGPA holders

M/s. "**NAMISHREE PROJECTS**" (PAN No.**AARFN4868J**) Represented by its Managing Partner Mr. MOTILAL JAIN S/o. MANGILAL JAIN, aged about 61 years, Occ: Business, R/o. H No : 6-1-630/10, Khairatabad, Hyderabad, Telangana State, India, PAN: **ACZPJ9355Q**, Aadhar No. **6298-6438-1163**, Phone No. **9848047744**.

(Vide Registered DAGPA bearing Doc No. **6359 of 2022** dated : 28-11-2022, and Doc No. **5054 of 2022** dated : 22-08-2022 of Sub Registrar Saroornagar, Hyderabad.

(HEREINAFTER referred to as "**OWNERS/VENDORS/FIRST PARTY**" which expression shall mean and include all their Legal Heirs, Successors, Assignees, Representatives, Administrators, Executors and Nominees etc.,

And

M/s. "**NAMISHREE PROJECTS**" (PAN No.**AARFN4868J**) Represented by its Managing Partner Mr. MOTILAL JAIN S/o. MANGILAL JAIN, aged about 61 years, Occ: Business, R/o. H No : 6-1-630/10, Khairatabad, Hyderabad, Telangana State, India, PAN: **ACZPJ9355Q**, Aadhar No. **6298-6438-1163**, Phone No. **9848047744**.

(HEREINAFTER referred to as "**PROMOTER/DEVELOPER/SECOND PARTY**" which expression shall mean and include all its Directors, , Successors, Assignees, Representatives, Administrators, Executors and Nominees etc.,

AND

Sri/Smt/Kum/Mrs/Mr. _____,
S/D/W/o. _____,
Aged : _____ years, Occupation : _____,

For **NAMISHREE PROJECTS**


Partner

R/o. _____,
Aadhaar No. _____, PAN No. _____,

(HEREINAFTER referred to as "**ALLOTTEE**" which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include all his/her heirs, Executors Administrators, Successors-interest, and permanent Assigns, etc.,

The Promoter and Allottee shall hereinafter collectively be referred to as the "Parties" and individually as a "Party"

DEFINITIONS

For the purpose of this Agreement of Sale, unless the context otherwise requires,-

- (a) "**Act**"- means the Real Estate (Regulation and Development) Act 2016 (16 of 2016)
- (b) "**Appropriate Government**" means the Government of Telangana ;
- (c) "**Rules**"- means the Real Estate (Regulation and Development) (General rules, 2016 made under the Real Estate (Regulation and Development Act) 2016
- (d) "**Regulations**"- means the Regulations made under the Real Estate (Regulation and Development Act) 2016;
- (e) "**Section**" means a section of the Act.

WHEREAS: -

- A. The Developer being a reputed builder and developer with vast experience in the construction of multi storied commercial complexes, Malls and Multiplexes, Residential complexes etc had entered into a registered Development Agreement cum General Power of Attorney bearing Doc No. 5054 of 2022 dated : 22-08-2022 and Doc No. 6359 of 2022 dated : 28-11-2022 of Sub Registrar Saroornagar, Hyderabad asunder :-

Whereas Party of the first part no.1 Owner herein i.e., Sri C. **MAHENDER REDDY** S/o. Sri C Narasimha Reddy is the absolute owner and possessor of all that converted open lands from agriculture to non agriculture as under : -

- a) Land admeasuring Ac.01-01 guntas in Sy No 121/part Situated at Tatianaram Village, Abdullapurmet Mandal, (Previously Hayathnagar Mandal, Ranga Reddy District having acquired the same under registered Gift (Settlement) deed bearing Doc No 3768 of 2009 dt 23/10/2009 of Sub Registrar Saroornagar executed by his father Sri C Narasimha Reddy S/o. Shiva Reddy and mothers Smt C Balamani W/o. Sri C Narasimha Reddy.

For NAMISHREE PROJECTS



Partner

- b) land admeasuring Ac.01-03.75 guntas in Sy No 121/part Situated at Tatianaram Village, Abdullapurmet Mandal, (Previously Hayathnagar Mandal, Ranga Reddy District having acquired the same under registered Gift (Settlement) deed bearing Doc No 3769 of 2009 Dated 23/10/2009 of Sub Registrar, Saroornagar executed by his father Sri C Narasimha Reddy S/o. Shiva Reddy and mothers Smt C Balamani W/o. Sri C Narasimha Reddy.
- c) Land admeasuring Ac.00-08.04 guntas in Sy No 121/part Situated at Tatianaram Village, Abdullapurmet Mandal, (Previously Hayathnagar Mandal), Ranga Reddy District having acquired the same under registered Gift (Settlement) deed bearing Doc No 3770 of 2009dt 23/10/2009 of Sub Registrar Saroornagar executed by his father Sri C Narasimha Reddy S/o. Shiva Reddy and mothers Smt C Balamani W/o. Sri C Narasimha Reddy.
- d) The Party of the First part is holding Pattedar Pass Book No. 636804 and Bhoomi Yajamanyapu Hakku Patram (Title deed) No. 636804 with Patta No 275 issued by Dy Collector and Tahsildar Hayathnagar Mandal showing his ownership and possession over lands in Sy No 121/p admeasuring Ac.2-12 ¾ gts of Tatianaram Village.
- e) The First party No.1 had also obtained Latest Pattedar Pass Book cum Bhoomi Yajamanyapu Hakku Patram No. T05010020083 with Khata No 275 issued by Tahsildar Abdullapurmet. The entire Lands admeasuring 11,222.75 sq yards Equivalent to 9382.21 sq Mtrs in Survey No 121/part of Tatianaram Village are converted from Agriculture to Non Agriculture Lands from Revenue Divisional Officer (RDO) east Division vide Proceeding No. 2201039731 Dated : 22/11/2022

WHEREAS, First Party No.2 / Owner herein i.e., Sri **C. AMARENDER REDDY** S/o. Sri C Narasimha Reddy is the absolute owner and possessor of all that converted open lands from agriculture to non agriculture as under : -

- a. All that converted Lands admeasuring 4961sq yards Equivalent to 4147.39 in Survey No 121/part, Situated at TATIANARAM Village, Abdullapurmet Mandal, Ranga Reddy District having acquired the lands under registered Gift Settlement Deed bearing Doc No 3771 of 2009dt23/10/2009 of SRO Saroornagar executed by his father Sri C Narsaimha Reddy and mother Smt C. Balamani.
- b. All that converted Lands admeasuring 3032.26 sq yards Equivalent to 2534.96 in Survey No 121/part, Situated at TATIANARAM Village, Abdullapurmet Mandal, Ranga Reddy District having acquired the lands under registered Gift Settlement Deed bearing Doc No 3772 of 2009dt 23/10/2009 of SRO Saroornagar executed by his father Sri C NarsaimhaReddy and mother Smt C.Balamani.
- c. All that converted Lands admeasuring 5921.74 sq yards Equivalent to 4950.57 Sq Mtrs in Survey No 121/part, Situated at TATIANARAM Village, Abdullapurmet Mandal, Ranga Reddy District having acquired the lands under registered Gift Settlement Deed bearing Doc No 3773 of 2009 dt. 23/10/2009 of SRO Saroornagar

For NAMISHREE PROJECTS


Partner

executed by his father Sri C NarsaimhaReddy and mother Smt C. Balamani. The entire Lands admeasuring 13,915 sq yards Equivalent to 11632.94 sq Mtrs in Survey No 121 of Tatianaram Village are converted from Agriculture to Non Agriculture Lands from Revenue Divisional Officer (RDO) east Division vide Proc No L/898/2017 dt 27/09/2017.

D. The Hyderabad Metropolitan Development Authority, Town Planning Section HMDA has granted the commencement certificate to develop the Project vide approval Lr No. 001610/BP/HMDA/0341/GHT/2023 dated : 10-07-2023.

E. The Promoter has obtained the final layout plan, sanctioned plan, specifications and approvals for the Project and also for the apartment, plot or building, as the case may be, from **HMD**. The Promoter agrees and undertakes that it shall not make any changes to these approved plans except in strict compliance with section 14 of the Act and other laws as applicable;

F. The Promoter has registered the Project under the provisions of the Act with the Telangana Real Estate Regulatory Authority at Hyderabad Telangana on _____ under registration no. _____,

G. The Allottee had applied for an apartment in the Project vide application no. _____ dated _____ and has been allotted apartment no. _____ having carpet area of _____ square feet, exclusive verandahs, balconies, terrace area of _____ sq. feet, totally having a saleable area of _____ sq. feet type _____, on _____ floor in [tower/block/building] no. _____ ("Building") along with garage/covered parking no. _____ admeasuring _____ square feet in the _____ [Please insert the location of the garage/covered parking], as permissible under the applicable law and of pro rata share in the common areas ("Common Areas") as defined under clause (n) of Section 2 of the Act (hereinafter referred to as the "Apartment" more particularly described in Schedule A and the floor plan of the apartment is annexed hereto and marked as Schedule B);

H. The Parties have gone through all the terms and conditions set out in this Agreement and understood the mutual rights and obligations detailed herein;

I. _____ [Please enter any additional disclosures/details];

J. The Parties hereby confirm that they are signing this Agreement with full knowledge of all the laws, rules, regulations, notifications, etc., applicable to the Project;

K. The Parties, relying on the confirmations, representations and assurances of each other to faithfully abide by all the terms, conditions and stipulations contained in this Agreement and all applicable laws, are now willing to enter into this Agreement on the terms and conditions appearing hereinafter;

For NAMISHREE PROJECTS



Partner

L. In accordance with the terms and conditions set out in this Agreement and as mutually agreed upon by and between the Parties, the Promoter hereby agrees to sell and the Allottee hereby agrees to purchase the [Apartment/Plot] and the garage/covered parking (if applicable) as specified in para G.

NOW THEREFORE, in consideration of the mutual representations, covenants, assurances, promises and agreements contained herein and other good and valuable consideration, the Parties agree as follows:

1. TERMS:

1.1. Subject to the terms and conditions as detailed in this Agreement, the Promoter agrees to sell to the Allottee and the Allottee hereby agrees to purchase, the [Apartment/Plot] as specified in para G.

1.2. The Total Price for the [Apartment/Plot] based on the Saleable area is Rs. _____ (Rupees _____ only ("Total Price") (Give break up and description):

Block/Building/Tower no. _____	Rate of Apartment per square feet*
Apartment no: _____	
Type: _____	
Floor : _____	
Total price (in rupees)	_____/-

*Provide breakup of the amounts such as cost of apartment, cost of exclusive balcony or verandah areas, cost of exclusive open terrace areas, proportionate cost of common areas, preferential location charges, taxes, maintenance charges as per Para 11 etc., if/as applicable. [AND] [if/as applicable]

Garage/Covered parking-1	Price for 1
Garage/Covered parking-2	Price for 2
Total price (in rupees)	_____

[OR]

Plot No _____ Type _____	Rate of Flat per sq feet
-----------------------------	--------------------------

For NAMISHREE PROJECTS


Partner

Total price (in rupees)	

"Provide breakup of the amounts such as cost of plot, proportionate cost of common areas, taxes, maintenance charges as per para 11 etc., if/as applicable. [AND] [if/as applicable]

Garage/Covered Parking -1	Price for 1
Garage /covered parking -2	Price for 2
Total Price (in rupees)	

Explanation:

(i) The Total Price above includes the booking amount paid by the allottee to the Promoter towards the [Apartment/Plot];

(ii) The Total Price above includes Taxes (consisting of tax paid or payable by the Promoter by way of Value Added Tax, Service Tax, and Cess or any other similar taxes which may be levied, in connection with the construction of the Project payable by the Promoter, by whatever name called) up to the date of handing over the possession of the apartment/plot to the allottee and the project to the association of allottees or the competent authority, as the case may be, after obtaining the completion certificate: Provided that in case there is any change / modification in the taxes, the subsequent amount payable by the allottee to the promoter shall be increased/reduced based on such change / modification: Provided further that if there is any increase in the taxes after the expiry of the scheduled date of completion of the project as per registration with the Authority, which shall include the extension of registration, if any, granted to the said project by the Authority, as per the Act, the same shall not be charged from the allottee provided that Stamp Duty, Registration fee, mutation charges shall be paid by the allottee as per actuals over and above the total price.

(iii) The Promoter shall periodically intimate in writing to the Allottee, the amount payable as stated in (i) and (ii) above and the Allottee shall make payment demanded by the Promoter within the time and in the manner specified therein. In addition, the Promoter shall provide to the Allottee the details of the taxes paid or demanded along with the acts/rules/notifications together with dates from which such taxes/levies etc. have been imposed or become effective;

(iv) The Total Price of [Apartment/Plot] includes recovery of price of Land, construction of [not only the Apartment but also] the Common Areas, internal development charges, external development charges, taxes, cost of providing electric wiring, electrical connectivity to the apartment, lift, water line and plumbing, finishing with paint, marbles, tiles, doors, windows, fire detection and firefighting equipment (as per law) in the common areas, maintenance charges as per para 11 etc. and includes cost for providing all other facilities,

For NAMISHREE PROJECTS


Partner

amenities and specifications to be provided as per the agreement within the [Apartment/Plot] and the Project.

1. 3 The Total Price is escalation-free, save and except increases which the Allottee hereby agrees to pay, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority from time to time. The Promoter undertakes and agrees that while raising a demand on the Allottee for increase in development charges, cost/charges imposed by the competent authorities, the Promoter shall enclose the said notification/order/rule/regulation to that effect along with the demand letter being issued to the Allottee, which shall only be applicable on subsequent payments. Provided that if there is any new imposition or increase of any development charges after the expiry of the scheduled date of completion of the project as per registration with the Authority, which shall include the extension of registration, if any, granted to the said project by the Authority, as per the Act, the same shall not be charged from the allottee.

1. 4 The Allottee(s) shall make the payment as per the payment plan set out in Schedule C ("Payment Plan").

1. 5 The Promoter may allow, in its sole discretion, a rebate for early payments of installments payable by the Allottee by discounting such early payments % per annum for the period by which the respective installment has been preponed. The provision for allowing rebate and such rate of rebate shall not be subject to any revision/withdrawal, once granted to an Allottee by the Promoter.

1. 6 It is agreed that the Promoter shall not make any additions and alterations in the sanctioned plans, layout plans and specifications and the nature of fixtures, fittings and amenities described herein at Schedule 'IY' and Schedule 'E' (which shall be in conformity with the advertisement, prospectus etc., on the basis of which sale is effected) in respect of the apartment, plot or building, as the case may be, without the previous written consent of the Allottee as per the provisions of the Act. Provided that the Promoter may make such minor additions or alterations as may be required by the Allottee, or such minor changes or alterations as per the provisions of the Act, on such terms as may be agreed. The Promoter shall not be liable for any manufacturing or other defects of any branded inputs or fixtures or services of any third party mentioned in the schedule/annexure to this agreement, unless it results in structural defect. The Association of Allottees shall take the responsibility for proper safety, maintenance (including continuance of annual maintenance/insurance contracts/agreements) and upkeep of all the fixtures, equipment and machinery provided by the Promoter, for which the Promoter shall not be liable after handing over.

1.7 [Applicable in case of an apartment] The Promoter shall confirm to the final carpet and Saleable area that has been allotted to the Allottee after the construction of the Building is complete and the occupancy certificate* is granted by the competent authority, by furnishing details of the changes, if any, in the carpet area or the Saleable Area. The total price payable for the carpet area shall be recalculated upon confirmation by the Promoter. If there is reduction in the carpet area or the Saleable Area then the Promoter shall refund the excess money paid by Allottee within forty-five days with annual interest at the rate

For NAMISHREE PROJECTS



Partner

prescribed in the Rules, from the date when such an excess amount was paid by the Allottee. If there is any increase in the carpet area or the Saleable Area, which is not more than three percent of the carpet area of the apartment, allotted to Allottee, the Promoter may demand that from the Allottee as per the next milestone of the Payment Plan as provided in Schedule C. All these monetary adjustments shall be made at the same rate per square feet as agreed in para 1.2 of this Agreement.

1.8 Subject to para 9.3 the Promoter agrees and acknowledges, the Allottee shall have the right to the [Apartment] as mentioned below:

(i) The Allottee shall have exclusive ownership of the [Apartment];

(ii) The Allottee shall also have undivided proportionate share in the Common Areas. Since the share / interest of Allottee in the Common Areas is undivided and cannot be divided or separated, the Allottee shall use the Common Areas along with other occupants, maintenance staff etc., without causing any inconvenience or hindrance to them. It is clarified that the promoter shall hand over the common areas to the association of allottees after duly obtaining the completion certificate from the competent authority as provided in the Act;

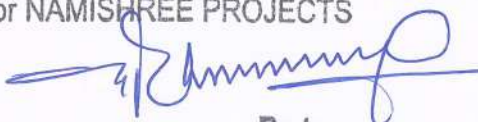
(iii) That the computation of the price of the [Apartment/Plot] includes recovery of price of land, construction of [not only the Apartment but also] the Common Areas, internal development charges, external development charges, taxes, cost of providing electric wiring, electrical connectivity to the apartment, lift, water line and plumbing, finishing with paint, marbles, tiles, doors, windows, fire detection and firefighting equipment (as per law) in the common areas, maintenance charges as per para 11 etc. and includes cost for providing all other facilities, amenities and specifications to be provided as per the agreement within the [Apartment/Plot] and the Project;

(iv) The Allottee has the right to visit the project site to assess the extent of development of the project and his apartment/plot, as the case may be with prior appointment.

1.9 It is made clear by the Promoter and the Allottee agrees that the [Apartment/Plot] along with garage/covered parking shall be treated as a single indivisible unit for all purposes. It is agreed that the Project is an independent, self-contained Project covering the said Land and is not a part of any other project or zone and shall not form a part of and/or linked/combined with any other project in its vicinity or otherwise except for the purpose of integration of infrastructure for the benefit of the Allottee (like club house). It is clarified that Project's facilities and amenities shall be available only for use and enjoyment of the Allottees of the Project.

1.10 The Promoter agrees to pay all outgoings before transferring the physical possession of the apartment to the Allottees, which it has collected from the Allottees, for the payment of outgoings (including land cost [either directly or by way of share in the project], ground rent, municipal or other local taxes, charges for water or electricity, maintenance charges, including mortgage loan and interest on mortgages or other encumbrances and such other liabilities payable to competent authorities, banks and financial institutions, which are

For NAMISHREE PROJECTS


Partner

related to the project). If the Promoter fails to pay all or any of the outgoings collected by it from the Allottees or any liability, mortgage loan and interest thereon before transferring the apartment to the Allottees, the Promoter agrees to be liable, even after the transfer of the property, to pay such outgoings and penal charges, if any, to the authority or person to whom they are payable and be liable for the cost of any legal proceedings which may be taken therefor by such authority or person.

1.11 The Allottee has paid a sum of Rs. _____ (Rupees _____ only) as booking amount being part payment towards the Total Price of the [Apartment/Plot] at the time of application the receipt of which the Promoter hereby acknowledges and the Allottee hereby agrees to pay the remaining price of the [Apartment/Plot] as prescribed in the Payment Plan [Schedule C] as may be demanded by the Promoter within the time and in the manner specified therein: Provided that if the allottee delays in payment towards any amount which is payable, he shall be liable to pay interest at the rate prescribed in the Rules.

2. MODE OF PAYMENT:

Subject to the terms of the Agreement and the Promoter abiding by the construction milestones, the Allottee shall make all payments, on written demand by the Promoter, within the stipulated time as mentioned in the Payment Plan [Schedule C] through A/c Payee cheque/demand draft/bankers cheque or online payment (as applicable) in favour of 'payable at Hyderabad

3. COMPLIANCE OF LAWS RELATING TO REMITTANCES:

3.3 The Allottee, if resident outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act, 1934 and the Rules and Regulations made thereunder or any statutory amendment(s) modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/ sale/transfer of immovable properties in India etc. and provide the Promoter with such permission, approvals which would enable the Promoter to fulfill its obligations under this Agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or the statutory enactments or amendments thereof and the Rules and Regulations of the Reserve Bank of India or any other applicable law. The Allottee understands and agrees that in the event of any failure on his/her part to comply with the applicable guidelines issued by the Reserve Bank of India, he/she may be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time.

3.4 The Promoter accepts no responsibility in regard to matters specified in para 3.3 above. The Allottee shall keep the Promoter fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Allottee subsequent to the signing of this Agreement, it shall be the sole responsibility of the Allottee to intimate the same in writing to the Promoter immediately and comply with necessary formalities if any under the applicable laws. The Promoter shall not be responsible towards any third party

For NAMISHREE PROJECTS



Partner

making payment/remittances on behalf of any Allottee and such third party shall not have any right in the application/allotment of the said apartment applied for herein in any way and the Promoter shall be issuing the payment receipts in favour of the Allottee only.

4. ADJUSTMENT/APPROPRIATION OF PAYMENTS: The Allottee authorizes the Promoter to adjust/appropriate all payments made by him/her under any head(s) of dues against lawful outstanding of the allottee against the [Apartment/Plot], if any, in his/her name and the Allottee undertakes not to object/demand/direct the Promoter to adjust his payments in any manner.

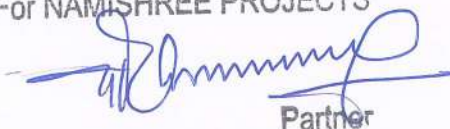
5. TIME IS ESSENCE: The Promoter shall abide by the time schedule for completing the project as disclosed at the time of registration of the project with the Authority and towards handing over the [Apartment] to the Allottee and the common areas to the association of allottees or the competent authority, as the case may be.

6. CONSTRUCTION OF THE PROJECT/ APARTMENT: The Allottee has seen the proposed layout plan, specifications, amenities and facilities of the [Apartment/Plot] and accepted the floor plan, payment plan and the specifications, amenities and facilities [annexed along with this Agreement] which has been approved by the competent authority, as represented by the Promoter. The Promoter shall develop the Project in accordance with the said layout plans, floor plans and specifications, amenities and facilities. Subject to the terms in this Agreement, the Promoter undertakes to strictly abide by such plans approved by the competent Authorities and shall also strictly abide by the bye-laws, FAR and density norms and provisions prescribed by the [Please insert the relevant State laws] and shall not have an option to make any variation /alteration / modification in such plans, other than in the manner provided under the Act, and breach of this term by the Promoter shall constitute a material breach of the Agreement.

7. POSSESSION OF THE APARTMENT/PLOT:

7.1 Schedule for possession of the said [Apartment/Plot] - The Promoter agrees and understands that timely delivery of possession of the [Apartment/Plot] to the allottee and the common areas to the association of allottees or the competent authority, as the case may be, is the essence of the Agreement. The Promoter assures to hand over possession of the [Apartment/Plot] along with ready and complete common areas with all specifications, amenities and facilities of the project in place on unless there is delay or failure due to war, flood, drought, fire, cyclone, earthquake or any other calamity caused by nature or any Court stay or Government order affecting the regular development of the real estate project ("Force Majeure"). If, however, the completion of the Project is delayed due to the Force Majeure conditions then the Allottee agrees that the Promoter shall be entitled to the extension of time for delivery of possession of the [Apartment/Plot], provided that such Force Majeure conditions are not of a nature which make it impossible for the contract to be implemented. The Allottee agrees and confirms that, in the event it becomes impossible for the Promoter to implement the project due to Force Majeure conditions, then this allotment shall stand terminated and the Promoter shall refund to the Allottee the entire amount received by the Promoter from the allotment within 90 days from that date. The promoter shall intimate the allottee about such termination at least thirty days prior to such

For NAMISHREE PROJECTS



Partner

termination. After refund of the money paid by the Allottee, the Allottee agrees that he/ she shall not have any rights, claims etc. against the Promoter and that the Promoter shall be released and discharged from all its obligations and liabilities under this Agreement.

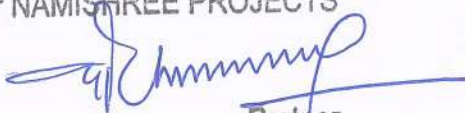
7.2 Procedure for taking possession - The Promoter, upon obtaining the occupancy certificate* from the competent authority shall offer in writing the possession of the [Apartment/Plot], to the Allottee who has paid all the amounts in terms of this Agreement to be taken within two months from the date of issue of occupancy certificate. If the allottee fails to take delivery within the time specified in the notice, he shall be liable for payment of all ongoings including maintenance charges from the date of notice. [Provided that, in the absence of local law, the conveyance deed in favour of the allottee shall be carried out by the promoter within 3 months from the date of issue of occupancy certificate]. The Promoter agrees and undertakes to indemnify the Allottee in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Promoter. The promoter shall not be liable for any defect or deficiency occasioned on account of any act or omission on the part of the allottee or any authority or third party on whom the promoter has no control. The Allottee, after taking possession, agree(s) to pay the maintenance charges as determined by the Promoter/association of allottees. The promoter shall hand over the occupancy certificate of the apartment/plot, as the case may be, to the allottee at the time of conveyance of the same.

7.3 Failure of Allottee to take Possession of [Apartment/Plot] - Upon receiving a written intimation from the Promoter as per para 7.2, the Allottee shall take possession of the [Apartment/Plot] from the Promoter by executing necessary indemnities, undertakings and such other documentation as prescribed in this Agreement, and the Promoter shall give possession of the [Apartment/Plot] to the allottee. In case the Allottee fails to take possession within the time provided in para 7.2, such Allottee shall continue to be liable to pay maintenance charges as specified in para 7.2.

7.4 Possession by the Allottee - After obtaining the occupancy certificate* and handing over physical possession of the [Apartment/Plot] to the Allottees, it shall be the responsibility of the Promoter to hand over the necessary documents and plans, including common areas, to the association of Allottees or the competent authority, as the case may be, as per the local laws. [Provided that, in the absence of any local law, the promoter shall handover the necessary documents and plans, including common areas, to the association of allottees or the competent authority, as the case may be, within thirty days after obtaining the completion certificate].

7.5 Cancellation by Allottee- The Allottee shall have the right to cancel/withdraw his allotment in the Project only as provided in the Act: Provided that where the allottee proposes to cancel/withdraw from the project without any fault of the promoter, the promoter herein is entitled to forfeit the booking amount paid for the allotment. The balance amount of money paid by the allottee shall be returned by the promoter to the allottee within three months of such cancellation or at the time that the Promoter is able to resell the said Apartment/Plot to another purchaser, whichever is later.

For NAMISHREE PROJECTS



Partner

7.6 Compensation - The Promoter shall compensate the Allottee in case of any loss caused to him due to defective title of the land, on which the project is being developed or has been developed, in the manner as provided under the Act and the claim for interest and compensation under this provision shall not be barred by limitation provided under any law for the time being in force.

Except for occurrence of a Force Majeure event, if the promoter fails to complete or is unable to give possession of the [Apartment/Plot] (i) in accordance with the terms of this Agreement, duly completed by the date specified in para 7.1; or (ii) due to discontinuance of his business as a developer on account of suspension or revocation of the registration under the Act; or for any other reason; the Promoter shall be liable, on demand to the allottees, in case the Allottee wishes to withdraw from the Project, without prejudice to any other remedy available, to return the total amount received by him in respect of the [Apartment/Plot], with interest at the rate prescribed in the Rules including compensation in the manner as provided under the Act within ninety days of it becoming due. Provided that where if the Allottee does not intend to withdraw from the Project, the Promoter shall pay the Allottee interest at the rate prescribed in the Rules for every month of delay, till the handing over of the possession of the [Apartment/Plot], which shall be paid by the promoter to the allottee within ninety days of it becoming due.

8. REPRESENTATIONS AND WARRANTIES OF THE PROMOTER:

1. The Promoter hereby represents and warrants to the Allottee as follows:

(ii) The [Promoter] has absolute, clear and marketable title with respect to the said Land; the requisite rights to carry out development upon the said Land and absolute, actual, physical and legal possession of the said Land for the Project;

(iii) The Promoter has lawful rights and requisite approvals from the competent Authorities to carry out development of the Project;

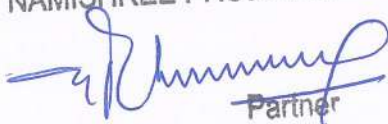
(iv) There are no encumbrances upon the said Land or the Project; [in case there are any encumbrances on the land provide details of such encumbrances including any rights, title, interest and name of party in or over such land]

(v) There are no litigations pending before any Court of law or Authority with respect to the said land or Project except those disclosed in the title report.

(vi) All approvals, licenses and permits issued by the competent authorities with respect to the Project, said Land and [Apartment/Plot] are valid and subsisting and have been obtained by following due process of law. Further, the Promoter has been and shall, at all times, remain to be in compliance with all applicable laws in relation to the Project, said Land, Building and [Apartment/Plot] and common areas;

(vii) The Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee created herein, may prejudicially be affected;

For NAMISHREE PROJECTS


Partner

(viii) The Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the said Land, including the Project and the said [Apartment/Plot] which will, in any manner, affect the rights of Allottee under this Agreement;

(ix) The Promoter confirms that the Promoter is not restricted in any manner whatsoever from selling the said [Apartment/Plot] to the Allottee in the manner contemplated in this Agreement;

(x) At the time of execution of the conveyance deed the Promoter shall handover lawful, vacant, peaceful, physical possession of the [Apartment/Plot] to the Allottee and the common areas to the association of allottees or the competent authority, as the case may be; -

(xi) The Promoter has duly paid and shall continue to pay and discharge all governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the said project to the competent Authorities till the completion certificate has been issued and possession of apartment, plot or building, as the case may be, along with common areas (equipped with all the specifications, amenities and facilities) has been handed over to the allottee and the association of allottees or the competent authority, as the case may be;

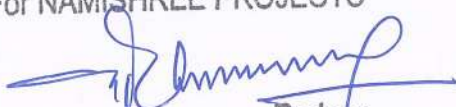
(xii) No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received by or served upon the Promoter in respect of the said Land and/or the Project except those disclosed in the title report.

2. The Allottee/s or himself/themselves with intention to bring all persons into whosoever hands the Apartment may come, hereby covenants with the Promoter as follows :-

i. To maintain the Apartment at the Allottee's own cost in good and tenantable repair and condition from the date that of possession of the Apartment is taken and shall not do or suffer to be done anything in or to the building in which the Apartment is situated which may be against the rules, regulations or bye-laws or change/alter or make addition in or to the building in which the Apartment is situated and the Apartment itself or any part thereof without the consent of the local authorities, if required.

ii. Not to store in the Apartment any goods which are of hazardous, combustible or dangerous nature or are so heavy as to damage the construction or structure of the building in which the Apartment is situated or storing of which goods is objected to by the concerned local or other authority and shall take care while carrying heavy packages which may damage or likely to damage the staircases, common passages or any other structure of the building in which the Apartment is situated, including entrances of the building in which the Apartment is situated and in case any damage is caused to the building in which the Apartment is situated or the Apartment on account of negligence or default of the Allottee in this behalf, the Allottee shall be liable for the consequences of the breach.

For NAMISHREE PROJECTS


Partner

iii. To carry out at his own cost all internal repairs to the said Apartment and maintain the Apartment in the same condition, state and order in which it was delivered by the Promoter to the Allottee and shall not do or suffer to be done anything in or to the building in which the Apartment is situated or the Apartment which may be contrary to the rules and regulations and bye-laws of the concerned local authority or other public authority. In the event of the Allottee committing any act in contravention of the above provision, the Allottee shall be responsible and liable for the consequences thereof to the concerned local authority and/or other public authority.

iv. Not to demolish or cause to be demolished the Apartment or any part thereof, nor at any time make or cause to be made any addition or alteration of whatever nature in or to the Apartment or any part thereof, nor any alteration in the elevation and outside colour scheme of the building in which the Apartment is situated and shall keep the portion, sewers, drains and pipes in the Apartment and the appurtenances thereto in good tenable repair and condition, and in particular, so as to support shelter and protect the other parts of the building in which the Apartment is situated and shall not chisel or in any other manner cause damage to columns, beams, walls, slabs or RCC, Patis or other structural members in the Apartment without the prior written permission of the Promoter and/or the Society or the Limited Company.

v. Not to do or permit to be done any act or thing which may render void or voidable any insurance of the project land and the building in which the Apartment is situated or any part thereof or whereby any increased premium shall become payable in respect of the insurance.

vi. Not to throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Apartment in the compound or any portion of the project land and the building in which the Apartment is situated.

vii. Pay to the Promoter within fifteen days of demand by the Promoter, his share of security deposit demanded by the concerned local authority or Government for giving water, electricity or any other service connection to the building in which the Apartment is situated.

viii. To bear and pay increase in local taxes, water charges, insurance and such other levies, if any, which are imposed by the concerned local authority and/or Government and/or other public authority, on account of change of user of the Apartment by the Allottee for any purposes other than for purpose for which it is sold.

ix. The Allottee shall observe and perform all the rules and regulations which the Society or the Limited Company or Apex Body or Federation or Association may adopt at its inception and the additions, alterations or amendments thereof that may be made from time to time for protection and maintenance of the said building and the Apartments therein and for the observance and performance of the Building Rules, Regulations and Bye-laws for the time being of the concerned local authority and of Government and other public bodies. The Allottee shall also observe and perform all the stipulations and conditions laid down by the Society/Limited Company/Apex Body/Federation/Association regarding the occupancy and

For NAMISHREE PROJECTS



Partner

use of the Apartment in the Building and shall pay and contribute regularly and punctually towards the taxes, expenses or other out-goings in accordance with the terms of this Agreement.

x. Till a conveyance of the common areas, services and amenities of the building/Project in which Apartment is situated is executed in favour of Society/Limited Company/Association and till all the total builtup area/units are sold off, the Allottee shall permit the Promoter and their surveyors and agents, with or without workmen and others, at all reasonable times, to enter into and upon the said buildings or any part thereof to view and examine the state and condition thereof.

9. EVENTS OF DEFAULTS AND CONSEQUENCES:

9.1 Subject to the Force Majeure clause, the Promoter shall be considered under a condition of Default, in the following events:

(i) Promoter fails to provide ready to move in possession of the [Apartment/Plot] to the Allottee within the time period specified in para 7.1 or fails to complete the project within the stipulated time disclosed at the time of registration of the project with the Authority. For the purpose of this para, 'ready to move in possession' shall mean that the apartment shall be in a habitable condition which is complete in all respects including the provision of all specifications, amenities and facilities, as agreed to between the parties, and for which occupation certificate and completion certificate, as the case may be, has been issued by the competent authority;

(ii) Discontinuance of the Promoter's business as a developer on account of suspension or revocation of his registration under the provisions of the Act or the rules or regulations made thereunder.

9.2 In case of Default by Promoter under the conditions listed above, Allottee is entitled to the following:

(i) Stop making further payments to Promoter as demanded by the Promoter. If the Allottee stops making payments, the Promoter shall correct the situation by completing the construction milestones and only thereafter the Allottee be required to make the next payment without any interest; or

(ii) The Allottee shall have the option of terminating the Agreement in which case the Promoter shall be liable to refund the entire money paid by the Allottee under any head whatsoever towards the purchase of the apartment, along with interest at the rate prescribed in the Rules within ninety days of receiving the termination notice: Provided that where an Allottee does not intend to withdraw from the project or terminate the Agreement, he shall be paid, by the promoter, interest at the rate prescribed in the Rules, for every month of delay till the handing over of the possession of the [Apartment], which shall be paid by the promoter to the allottee within ninety days of it becoming due, subject to allottee making total payment .

For NAMISHREE PROJECTS


Partner

9.3 The Allottee shall be considered under a condition of Default, on the occurrence of the following events:

(i) In case the Allottee fails to make payments for consecutive demands made by the Promoter as per the Payment Plan annexed hereto, despite having been issued notice in that regard the allottee shall be liable to pay interest to the promoter on the unpaid amount at the rate prescribed in the Rules;

(ii) In case of Default by Allottee under the condition listed above continues for a period beyond consecutive months after notice from the Promoter in this regard, the Promoter may cancel the allotment of the [Apartment/Plot] in favour of the Allottee and refund the money paid to him by the allottee by deducting the booking amount and the interest liabilities and this Agreement shall thereupon stand terminated. Provided that the promoter shall intimate the allottee about such termination at least thirty days prior to such termination. The amount shall be repaid by the Promoter within a period of ninety days after termination or the date on which the Promoter is able to resell the Apartment/Plot to another purchaser, whichever is later.

10. CONVEYANCE OF THE SAID APARTMENT:

The Promoter, on receipt of Total Price of the [Apartment/Plot] as per para 1.2 under the Agreement from the Allottee, shall execute a conveyance deed/sale deed and convey the title of the [Apartment/Plot] together with proportionate indivisible share in the Common Areas within 3 months from the date of issuance of the occupancy certificate* and the completion certificate, as the case may be, to the allottee. [Provided that, in the absence of local law, the conveyance deed in favour of the allottee shall be carried out by the promoter within 3 months from the date of issue of occupancy certificate]. However, in case the Allottee fails to deposit the stamp duty and/or registration charges within the period mentioned in the notice, the Allottee authorizes the Promoter to withhold registration of the conveyance deed in his/her favour till payment of stamp duty and registration charges to the Promoter is made by the Allottee.

11. MAINTENANCE OF THE SAID BUILDING / APARTMENT / PROJECT:

1. The Promoter shall be responsible to provide and maintain essential services in the Project till the taking over of the maintenance of the project by the association of allottees and the cost of maintenance shall be borne by the Promoter and the Allottees, proportionate to the plots/apartments/buildings in their respective occupation. The facilities like Club House and service connections, like water and sewerage supply, which are common to the entire project undertaken in phases, shall be jointly maintained by the Promoter and the Association till the entire project is completed. The Club House and its services shall be subject to user charges as may be fixed by the Management of the Club House or as the case may be the service provider, from time to time.

2. All other infrastructural facilities, including the equipment like lift, elevator, mechanical, electrical or electronic equipment, STP, etc., shall always be covered by appropriate annual maintenance agreements and insurance agreements with the authorized service providers

For NAMISHREE PROJECTS



Partner

and the costs of such AMC and Insurance shall be part of the maintenance charges payable by the occupants. Unless the possession is delivered to the allottee, the Promoter shall be the occupant in respect of any plot/apartment/building.

12. DEFECT LIABILITY:

1. It is agreed that in case any structural defect or any other defect in workmanship, quality or provision of services or any other obligations of the Promoter as per the agreement for sale relating to such development is brought to the notice of the Promoter within a period of 5 (five) years by the Allottee from the date of handing over possession, it shall be the duty of the Promoter to rectify such defects without further charge, within 30 (thirty) days, and in the event of Promoter's failure to rectify such defects within such time, the aggrieved Allottees shall be entitled to receive appropriate compensation in the manner as provided under the Act, however any damage caused by the allottee after handover of the flat to him/her, he/she shall be responsible for the same.

2. Notwithstanding anything contained in the above clause the following exclusions are made

a. Equipment (lifts, generator, motors, STP, transformers, gym equipment etc) which carry manufacturer's guarantees for a limited period. Thereafter the welfare association /society shall take annual maintenance contract with the suppliers. The Promoter shall transfer manufacturers guarantees/warranties to the allottee or association of allottees as the case may be.

b. Fittings related to plumbing, sanitary, electrical, hardware, etc. having natural wear and tear.

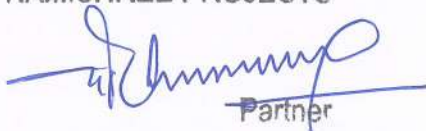
c. Allowable structural and other deformations including expansion quotient.

d. The terms of work like painting etc. which are subject to wear and tear.

3. The allottees shall maintain the apartments in good tenantable conditions and carry out the internal repairs for the upkeep of the apartments. The association of the allottees or its assigns shall maintain the services and amenities in good condition and covered with proper AMC and insurance. The obligation of the developers shall be subject to proper maintenance and upkeep of the apartments/services and amenities by the attottee or the association of the allottees as the case may be.

13. RIGHT TO ENTER THE APARTMENT FOR REPAIRS: The Promoter / maintenance agency /association of allottees shall have rights of unrestricted access of all Common Areas, garages/covered parking and parking spaces for providing necessary maintenance services and the Allottee agrees to permit the association of allottees and/or maintenance agency to enter into the [Apartment/Plot] or any part thereof, after due notice and during the normal working hours, unless the circumstances warrant otherwise, with a view to set right any defect.

For NAMISHREE PROJECTS



Partner

14. USAGE: Use of Basement and Service Areas: The basement(s) and service areas, if any, as located within the **"TWIN TOWERS"** shall be earmarked for purposes such as parking spaces and services including but not limited to electric sub-station, transformer, DG set rooms, underground water tanks, pump rooms, maintenance and service rooms, fire fighting pumps and equipment's etc., drivers washrooms, rest rooms, conveyance store, car wash bays, children play area etc., and other permitted uses as per sanctioned plans. The Allottee shall not be permitted to use the services areas and the basements in any manner whatsoever, other than those earmarked as parking spaces, and the same shall be reserved for use by the association of allottees formed by the Allottees for rendering maintenance services.

15. GENERAL COMPLIANCE WITH RESPECT TO THE APARTMENT:

15.1 Subject to para 12 above, the Allottee shall, after taking possession, be solely responsible to maintain the [Apartment/Plot] at his/her own cost, in good repair and condition and shall not do or suffer to be done anything in or to the Building, or the [Apartment/Plot], or the staircases, lifts, common passages, corridors, circulation areas, atrium or the compound which may be in violation of any laws or rules of any authority or change or alter or make additions to the [Apartment/Plot] and keep the [Apartment/Plot], its walls and partitions, sewers, drains, pipe and appurtenances thereto or belonging thereto, in good and tenantable repair and maintain the same in a fit and proper condition and ensure that the support, shelter etc. of the Building is not in any way damaged or jeopardized.

15.2 The Allottee further undertakes, assures and guarantees that he/she would not put any sign-board / name-plate, neon light, publicity material or advertisement material etc. on the face / facade of the Building or anywhere on the exterior of the Project, buildings therein or Common Areas. The Allottees shall also not change the colour scheme of the outer walls or painting of the exterior side of the windows or carry out any change in the exterior elevation or design. Further the Allottee shall not store any hazardous or combustible goods in the [Apartment/Plot] or place any heavy material in the common passages or staircase of the Building. The Allottee shall also not remove any wall, including the outer and load bearing wall of the [Apartment/Plot].

15.3 The Allottee shall plan and distribute its electrical load in conformity with the electrical systems installed by the Promoter and thereafter the association of allottees and/or maintenance agency appointed by association of allottees. The Allottee shall be responsible for any loss or damages arising out of breach of any of the aforesaid conditions.

16. COMPLIANCE OF LAWS, NOTIFICATIONS ETC. BY PARTIES:

The Parties are entering into this Agreement for the allotment of a [Apartment/Plot] with the full knowledge of all laws, rules, regulations, notifications applicable to the project.

17. ADDITIONAL CONSTRUCTIONS: The Promoter undertakes that it has no right to make additions or to put up additional structure(s) anywhere in the Project after the

For NAMISHREE PROJECTS


Partner

building plan, layout plan, sanction plan and specifications, amenities and facilities has been approved by the competent authority(ies) and disclosed, except for as provided in the Act.

18. MORTGAGE OR CREATE A CHARGE:

Notwithstanding any other term of this Agreement, the Allottee hereby authorizes and permits the Promoter to raise finance/loan from any institution / company / bank by any mode or manner by way of charge/mortgage/securitization of the Apartment / Project / Building or the land underneath or the receivables, subject to the condition that the Apartment shall be made free from all encumbrances at the time of execution of Sale Deed in favour of the Allottee(s). The allottee shall be informed about the same at the time of agreement.

19. FORMATION OF ASSOCIATION OF ALLOTTEES AND CONSENT OF ALLOTTEES):

The Promoter shall take the following steps to enable formation of an Association of Allottees under section 11(4)(e) of the Act:-

a) with respect to a real estate project, the Promoter shall submit an application to the Registrar for registration of the Association of Allottees as a society under the A.P. Societies Registration Act, 2001 (as applicable to the state of Telangana), within two months from the date on which the occupation certificate in respect of such project is issued and a minimum of sixty per cent of the total Allottees in such a project have taken possession and the Promoter has received the full consideration from such Allottees. All the Allottees on payment of full consideration shall become members of such Association of Allottees formed by the Promoter.

b) If the promoter fails to form the Association of Allottees, the Authority shall by an order direct the Promoter to apply for formation of such Association or may authorize the Allottees to apply for formation of the said Association.

c) Notwithstanding any other rule, after conveying the title to the Association of Allottees under Section 17, the Promoter shall continue to have the rights and entitlement to advertise, market, book, sell or offer to sell or allot to person to purchase any apartment or building or plot which is still not sold or allotted and shall be deemed to have been allowed to do so by the Association of Allottees without any restriction or entry of the building and development of common areas.

20. BINDING EFFECT: Forwarding this Agreement to the Allottee by the Promoter does not create a binding obligation on the part of the Promoter or the Allottee until, firstly, the Allottee signs and delivers this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan within 30 (thirty) days from the date of receipt by the Allottee and secondly, appears for registration of the same before the concerned Sub-Registrar _____ (specify the address of the Sub-Registrar) as and when intimated by the Promoter. If the Allottee(s) fails to execute and deliver to the Promoter this Agreement within 30 (thirty) days from the date of its receipt by the Allottee and/or appear before the Sub-Registrar for its registration as and when intimated by the Promoter,

For NAMISHREE PROJECTS


Partner

then the Promoter shall serve a notice to the Allottee for rectifying the default, which if not rectified within 30 (thirty) days from the date of its receipt by the Allottee, application of the Allottee shall be treated as cancelled and all sums deposited by the Allottee in connection therewith including the booking amount shall be returned to the Allottee without any interest or compensation whatsoever.

21. **ENTIRE AGREEMENT:** This Agreement, along with its schedules, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the said apartment/plot/building, as the case may be.

22. **RIGHT TO AMEND:** This Agreement may only be amended through written consent of the Parties.

23. **PROVISIONS OF THIS AGREEMENT APPLICABLE ON ALLOTTEE SUBSEQUENT ALLOTTEES:** It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising hereunder in respect of the [Apartment/Plot] and the Project shall equally be applicable to and enforceable against and by any subsequent Allottees of the [Apartment/Plot], in case of a transfer, as the said obligations go along with the [Apartment/Plot] for all intents and purposes.

24. **WAIVER NOT A LIMITATION TO ENFORCE:**

24.1 The Promoter may, at its sole option and discretion, without prejudice to its rights as set out in this Agreement, waive the breach by the Allottee in not making payments as per the Payment Plan [Annexure C] including waiving the payment of interest for delayed payment. It is made clear and so agreed by the Allottee that exercise of discretion by the Promoter in the case of one Allottee shall not be construed to be a precedent and /or binding on the Promoter to exercise such discretion in the case of other Allottees.

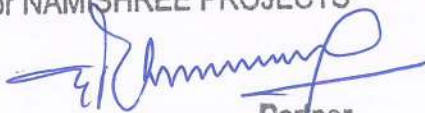
24.2 Failure on the part of the Parties to enforce at any time or for any period of time the provisions hereof shall not be construed to be a waiver of any provisions or of the right thereafter to enforce each and every provision.

25. **SEVERABILITY:** If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made thereunder or under other applicable laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement and to the extent necessary to conform to Act or the Rules and Regulations made thereunder or the applicable law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.]

26. **METHOD OF CALCULATION OF PROPORTIONATE SHARE WHEREVER**

REFERRED TO IN THE AGREEMENT: Wherever in this Agreement it is stipulated that the Allottee has to make any payment, in common with other Allottee(s) in Project, the same shall be the proportion which the carpet area of the [Apartment/Plot] bears to the total carpet area of all the [Apartments/Plots] in the Project.

For NAMISHREE PROJECTS



Partner

27. FURTHER ASSURANCES: Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in additions to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

28. PLACE OF EXECUTION: The execution of this Agreement shall be complete only upon its execution by the Promoter through its authorized signatory at the Promoter's Office, or at some other place, which may be mutually agreed between the Promoter and the Allottee, in after the Agreement is duly executed by the Allottee and the Promoter or simultaneously with the execution the said Agreement

29. NOTICES: That all notices to be served on the Allottee and the Promoter as contemplated by this Agreement shall be deemed to have been duly served if sent to the Allottee or the Promoter by Registered Post at their respective addresses specified below:

Name of Allottee

(Allottee Address)

M/s Promoter name

(Promoter Address)

It shall be the duty of the Allottee and the Promoter to inform each other of any change in address subsequent to the execution of this Agreement in the above address by Registered Post failing which all communications and letters posted at the above address shall be deemed to have been received by the promoter or the Allottee, as the case may be.

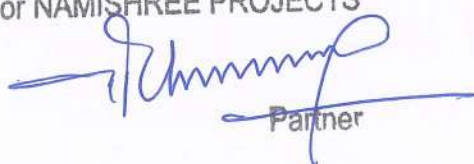
30. JOINT ALLOTTEES: That in case there are Joint Allottees all communications shall be sent by the Promoter to the Allottee whose name appears first and at the address given by him/her which shall for all intents and purposes to consider as properly served on all the Allottees.

31. SAVINGS: Any application letter, allotment letter, agreement, or any other document signed by the allottee, in respect of the apartment, plot or building, as the case may be, prior to the execution and registration of this Agreement for Sale for such apartment, plot or building, as the case may be, shall not be construed to limit the rights and interests of the allottee under the Agreement for Sale or under the Act or the rules or the regulations made thereunder.

32. GOVERNING LAW: That the rights and obligations of the parties under or arising out of this Agreement shall be construed and enforced in accordance with the Act and the Rules and Regulations made thereunder including other applicable laws of India for the time being in force.

33. DISPUTE RESOLUTION: All or any disputes arising out or touching upon or in relation to the terms and conditions of this Agreement, including the interpretation and validity of the terms thereof and the respective rights and obligations of the Parties, shall be settled

For NAMISHREE PROJECTS


Partner

amicably by mutual discussion, failing which the same shall be settled through the adjudicating officer appointed under the Act.

[Please insert any other terms and conditions as per the contractual understanding between the parties, however, please ensure that such additional terms and conditions are not in derogation of or inconsistent with the terms and conditions set out above or the Act and the Rules and Regulations made thereunder.]

IN WITNESS WHEREOF parties hereinabove named have set their respective hands and signed this Agreement for Sale at (city/town name) in the presence of attesting witness, signing as such on the day first above written.

SIGNED AND DELIVERED BY THE WITHIN NAMED:

Allottee: (including joint buyers)

(1) Signature _____, Please affix photograph and sign
across the photograph

Name _____,

Address _____,

(2) Signature. _____, Please affix photograph and Sign
across the photograph

Name. _____,

Address. _____,

SIGNED AND DELIVERED BY THE WITHIN NAMED:

Promoter:

(1) Signature (Authorised Signatory)

Please affix photograph and sign
across the photograph

Name

Address

At _____ on _____ in the presence of:

WITNESSES:

For NAMISHREE PROJECTS



Partner

1. Signature _____,

Name : _____,

Address: _____,

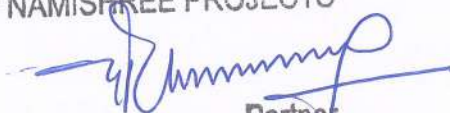
2. Signature : _____,

Name : _____,

Address: _____,

Schedule-A	All that Residential Flat. No. _____ in _____ Floor in Block-A at Project "ARIA" with built up area admeasuring _____ Square feet (including common area) and undivided share in the land admeasuring _____ Square yards out of _____ Square yards being constructed in Survey No 121/part Situated at TATIANARAM Village, Abdullapurmet Mandal, L.B. Nagar Circle GHMC, Ranga Reddy District PARKING NO _____ ALONG WITH BOUNDARIES 1N ALL FOUR DIRECTIONS:- NORTH : OPEN TO SKY SOUTH : OPEN TO SKY EAST : OPEN TO SKY WEST : CORRIDOR																	
Schedule-B																		
Schedule-C	<table border="1"><thead><tr><th>S.No</th><th>PAYMENT SCHEDULE</th></tr></thead><tbody><tr><td>1</td><td>Rs. 1,00,000/- Booking Amount</td></tr><tr><td>2</td><td>20 % within One Month from date of Booking</td></tr><tr><td>3</td><td>10 % On completion of 4TH Floor slab</td></tr><tr><td>4</td><td>10 % On completion of 8th Floor slab</td></tr><tr><td>5</td><td>10 % On completion of 12th Floor slab</td></tr><tr><td>6</td><td>10 % On completion of 16th Floor slab</td></tr><tr><td>7</td><td>10 % On completion of 20th Floor slab</td></tr></tbody></table>	S.No	PAYMENT SCHEDULE	1	Rs. 1,00,000/- Booking Amount	2	20 % within One Month from date of Booking	3	10 % On completion of 4 TH Floor slab	4	10 % On completion of 8 th Floor slab	5	10 % On completion of 12 th Floor slab	6	10 % On completion of 16 th Floor slab	7	10 % On completion of 20 th Floor slab	
S.No	PAYMENT SCHEDULE																	
1	Rs. 1,00,000/- Booking Amount																	
2	20 % within One Month from date of Booking																	
3	10 % On completion of 4 TH Floor slab																	
4	10 % On completion of 8 th Floor slab																	
5	10 % On completion of 12 th Floor slab																	
6	10 % On completion of 16 th Floor slab																	
7	10 % On completion of 20 th Floor slab																	

For NAMISHREE PROJECTS


Partner

	8	10 % On completion of 23 rd Floor slab
	9	10 % On completion of brick work
	10	05 % On completion of Flooring & electrical work
	11	05 % after completion of sanitary fittings and handover
Schedule -D	<u>SPECIFICATIONS</u> <u>RESIDENTIAL</u> STRUCTURE : RCC framed structure to withstand wind and seismic loads designed by a reputed structural engineer and brickwork with 4" interior walls and 6" / 8" outer walls with smooth Cement plaster DOORS : Main Door: Teak wood door frame and Aesthetically designed veneer laminated flush doors with good quality hardware of Godrej or Europa or Equivalent make, Internal Doors: Flush Doors with Teak wood door frames. WINDOWS : UPVC Windows of Reputed Brand with Glass KITCHEN : Polished granite platform with superior stainless steel sink. Two feet glazed tiled dado above kitchen platform, provision for modular kitchen, provision for electrical chimney and water purifier, power points for modern appliances FLOORING : 800 x 800 or 600 x 600 vitrified premium quality tiles. (Johnson, Vermora, Mozart, Imported or Equivalent) PAINTING : Interior: Two coats of good quality plastic emulsion paint over putty finished surface. (All Paints of Asian Make) Exterior: Texture finish and weather-proof emulsion paints of Asian make TOILETS : Design tiles for flooring, glazed ceramic tiles dado up to 7 feet height in toilets of reputed brand, CPVC plumbing lines, all C.P fittings of reputed brand, sanitaryware of reputed Kohler, jaguar hot and cold mixer with shower of reputed brands Kohler, jaguar will be fixed. GENERATOR : Power back-up for common amenities	

LIFTS	:	10lifts shallbeprovided in the total project (5 in each block including the goods lift.) Passenger lifts of reputed brand with V3F Technology.
SECURITY & SAFETY	:	Sophisticated round-the-clock security system, surveillance cameras at the main security and where else requiredCCTV cameras shall beInstalled.
FIRE	:	The entire building is fixed with firefighting Equipment as per the norms of the Fire Department.
WATER SUPPLY	:	Adequate supply of water from bore wells
PARKING:		Multi-level car parking with excellent driveways.as per the GHMC norms.
ELECTRICAL	:	Concealed copperwiring of reputed make poly cab Finolex, poweroutlets for air-conditioners in all bed rooms, power outlets for geysers in all bathrooms, power plugs for cooking range chimney, refrigerator, microwave ovens, mixer/grinders in kitchen, washing machine, dish washer in the specified utility areas. Provision for digital TV and Wi-fi connections.
CLUB FACILITIES	:	Swimming Pool (Complete with changing rooms and pump room and machineryand Filtering Plant) Air Conditioned Gymnasium, (Equipped with Treadmill, Cross Trainer, Elliptical Cycle, Dumble Set, Bench press, Multi Gym Etc.) Multipurpose Hall, (For internal Gathering of upto 500 Guest for small parties and internal functions with chairs and small stage also) Indoor and Out doorGames (Board games, Billiards, Snooker Table,Carrom board, Chess Board, Table Tennis. Tennis Court / Squash Court / Basket BallCourtif space permits)

	Club House Elegant Double Height Lobby Area, Lavish Landscaped Garden area, Jogging Track, Pantry Etc. There shall be a provision of a yoga and meditation in a separate room.
ELEVATION	: Modernly Designed Elevation, Exclusive Arched Entrance and Exit

[The 'Schedules' to this Agreement for Sale shall be as agreed to between the Parties]

For NAMISHREE PROJECTS


Partner

DRAFT